agreements to arbitrate are unenforceable." (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the MAA contains a high degree of substantive unconscionability because it contains terms demonstrating a lack of mutuality. "A lack of mutuality exists when an arbitration agreement expansively defines who is to be bound by the agreement on one side, but restrictively defines who is bound by it as to the other side." (*Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312, 326.) In *Cook,* the Court noted that the agreement required Cook to arbitrate all claims against USC or any of its related entities but did not require those related entities to arbitrate their claims against Cook. (*Ibid.*) Plaintiff argues that here, as in *Cook,* the MAA "applies to a dispute that the *Company may have against you*, or that *you may have against*: (1) the Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company's benefits plans or the plan's sponsors, fiduciaries, administrators, affiliates, or agents; and (4) all successors and assigns of any of them. (Dec.Rodrigues ¶ 8, Ex. "A".) Essentially, Plaintiff argues that the MAA does not encompass a reciprocal obligation.[3]

The MAA contains some overbreadth because it requires Plaintiff to arbitrate claims against many non-parties but does not require them to arbitrate claims against her. However, the MAA is limited to claims relating to employment making it narrower and factually distinguishable from *Cook.* More importantly, even where there is some substantive unconscionability, some degree of procedural unconscionability is also required. Here, as discussed above, there is **no** procedural unconscionability. Thus, overall, the MAA is not unconscionable.

9.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2602754	IN RE: VERONICA FONCECA	MOTION TO VACATE ORDER AND APPROVE FIRST AMENDED PETITION

Tentative Ruling: GRANTED.

10.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2604565	O'DUFFY BROS. VS DUFFY	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: DENY

Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court will not consider probability of prevailing under prong 2.

On 2/27/2026, O'Duffy Bros, Inc. and James T. Duffy ("James" and collectively "Plaintiffs") filed a complaint against Nicholas Duffy ("Nicholas") and Duffy General Engineering ("Defendants") asserting the following causes of action: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) usurpation of corporate opportunity; (4) fraud (intentional misrepresentation); (5) fraud (concealment); (6) misappropriation of trade secrets; (7)